Privacy Policy

This privacy policy (**"Privacy Policy"**) sets forth the modes of collection, use, processing and disclosure of your information gathered on the 'EarlySalary' website [earlysalary.com] and mobile phone application ("**Platform"**, together **"Platforms"**). This Privacy Policy applies only to personal information collected on the Platforms. However, this Privacy Policy shall not apply to information collected by the Company (as defined below) in other ways, including information collected offline. Please read this Privacy Policy carefully and note that by continuing to use the Services (as defined below), or accessing the Platforms you agree to this Privacy Policy. If you do not agree to this Privacy Policy, you may not avail the Services.

Access to the Platforms is subject to the Terms and Conditions (**"Terms"**) accessible on the Platforms, capitalized terms used and not defined in this Privacy Policy, shall have the same meaning ascribed to them in the Terms.

INTRODUCTION

We, Social Worth Technologies Private Limited (**"Company"** or **"We"** or **"us"** or **"our**) have developed a mobile application called EarlySalary (**"Application/ App"**) through which you may apply for a short term loan (**"Loan"**) to be granted by various non-banking financial company OR banks (**"Lenders"**), based on the loan agreement executed between you and the Lender. Lender has appointed and authorized us to collect, store, authenticate, verify and distribute the Personal Information (as defined below) as may be required by the Lender to sanction the Loan. The Personal Information shall be collected through the mobile application form (**"Mobile Application Form"**) available on the Application. This Privacy Policy outlines the information the Company (as defined below) may process and/or use to improve the user experience while using the Services (as defined below).

We are committed to protecting your privacy and have made this Privacy Policy to describe the procedures we adhere to for collecting, storing, using, processing, and disclosing your Personal Information. We recommend that you read this Privacy Policy carefully so that you understand our approach towards the use of your Personal Information.

By accepting this Privacy Policy, you represent that you are eighteen years of age or above and that you expressly agree and consent to the collection, storage, processing, disclosure, and use of your Personal Information according to terms set out hereunder.

Digitally signed by Abhiroop Khairnar
Date: 2024.10.03 16:44:56 UTC
Location : Pune
Authorised Signatory: On behalf of SWTPL

PERSONAL INFORMATION COLLECTED

For the purpose of this Policy, services shall mean the services of granting, sanctioning, lending of loans, through the Platform by Lender (**"Services"**). In order to avail the Services, you are required to register with the Company by logging in through Third Party Platforms (as defined below) (**"User Account"**). During the application process, you shall be required to share/upload certain personal information, such as your name, e-mail address, gender, date of birth, mobile. number, passwords, photograph, mobile phone information, SMS and browsing history, data and login-in credentials of Third Party Platforms (as defined below), financial information such as bank documents, salary slips, bank statements, PAN card, bank account no., data from Credit Information Companies, data required for Know Your Customer compliances, requirement and other relevant details (**"Personal Information"**). You undertake that you shall be solely responsible for the accuracy and truthfulness of the Personal Information you share with us.

As part of the Services, you authorize us to import your details and Personal Information dispersed over Third Party Platforms. **Third Party Platforms** shall mean social networking platforms, such as Facebook, LinkedIn and other similar platforms.

You understand and acknowledge that the Company reserves the right to track your location (**"Track"**) during the provision of the Services, and also in the event that you stop, cease, discontinue to use or avail the Services, by way of deletion or uninstallation of the Application or otherwise, till the event that your obligations to pay the outstanding amount(s) to Lender are not satisfied to the full. Deletion, uninstallation, and/or discontinuation of our Services, shall not release you from the responsibility, obligation and liability to repay the outstanding amount(s).

You further understand and acknowledge that provision of the information provided herewith is voluntarily and you may choose to provide and/or withhold provision of any data. However, in case of non-provision of any data you may not be eligible for certain services for which such data may be needed.

COOKIES

We may set and use cookies to track your use of our Platforms. Cookies are small, encrypted files, that a site or its service provider transfers to your device's hard drive that enables the sites or service provider's systems to recognize your device and capture and remember certain information. By using the Platforms, you signify your consent to our use of cookies.

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DISCLOSURES

We do not sell, rent, lease your Personal Information to anybody and will never do so. Keeping this in mind, we may disclose and share your Personal Information with certain persons, including persons outside India, for the provision of Services such as :

- Administrators: We shall provide access to your Personal information to our authorized administrative(s) for internal business purposes, who shall be under confidentiality obligations towards the same.
- Affiliates: We may provide the Personal Information we collect to our affiliates. For example, we may disclose Personal Information to our affiliates in order to respond to your requests for information or the Services, or to help limit your receipt of marketing materials you have requested not to receive.

- Business Partners: We may use certain trusted third-party companies and individuals to help us provide, analyse, and improve the Services including but not limited to data storage, maintenance services, database management, credit bureaus, rating agencies, web analytics, payment processing, and improvement of the Platform's features. These third parties may have access to your information only for purposes of performing these tasks on our behalf and under obligations similar to those in this Privacy Policy. We may disclose your Personal Information to partners who perform business functions or hosting services on our behalf and who may be located outside India.
- Service Providers: We may share your Personal Information with the service providers, including Lenders, who are working with us in connection with the operation of the Services or the Platforms, so long as such service providers are subject to confidentiality restrictions consistent with this Privacy Policy.

- Joint Marketing Arrangements: Where permitted by law, we may share your Personal Information with joint marketers with whom we have a marketing arrangement, we would require all such joint marketers to have written contracts with us that specify the appropriate use of your Personal Information, require them to safeguard your Personal Information, and prohibit them from making unauthorized or unlawful use of your Personal Information.

- Persons Who Acquire Our Assets or Business: If we sell or transfer any of our business or assets, certain Personal Information may be a part of that sale or transfer. In the event of such a sale or transfer, we will notify you.

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- Legal and Regulatory Authorities: We may be required to disclose your Personal Information due to legal or regulatory requirements. In such instances, we reserve the right to disclose your Personal Information as required in order to comply with our legal obligations, including but not limited to complying with court orders, warrants, or discovery requests. We may also disclose your Personal Information - (a) to law enforcement officers or others; (b) to Credit Information Companies; (c) to comply with a judicial proceeding, court order, or legal process served on us or the Platform; (d) to enforce or apply this Privacy Policy or the Terms or our other policies or agreements; (e) for an insolvency proceeding involving all or part of the business or asset to which the information pertains; (f) respond to claims that any Personal Information violates the rights of third-parties; and (g) or protect the rights, property, or personal safety of the Company, or the general public. You agree and acknowledge that we may not inform you prior to or after disclosures made according to this section.

Notwithstanding anything mentioned hereinabove, the Company shall not be responsible for the actions or omissions of the service providers or parties with whom the Personal Information is shared, nor shall the Company be responsible and/or liable for any additional information you may choose to provide directly to any service provider or any third party.

DATA RETENTION

We will retain your Personal Information for as long as your registration with us is valid and the outstanding amount(s) is due and payable to Lender. We may also retain and use your Personal Information for such period as is necessary to comply with Applicable Laws (as defined below),our legal obligations, resolve disputes, and enforce our agreements.

You may choose to delete and/or change/ withdraw your consent for use/collection of your data at any point. You may reach out to us over email specifying such a change. Upon receiving such request we will delete your Personal Information subject to receiving written request for the same through your registered email-id. Please note, however, that there might be latency in deleting Personal Information from our servers and backed-up versions might exist even after deletion. Also upon such a withdrawal request you might not be further eligible for any Services and it shall be at sole discretion of the Company.

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SECURITY

We value your Personal Information, and protect it on the Platform against loss, misuse or alteration by taking extensive security measures. In order to protect your Personal Information, we have adopted reasonable security practices and procedures, including physical, managerial, operation and technical security measures and will endeavor to keep the same updated as and when new technology becomes available, as required under Applicable Laws (as defined hereunder). All Personal Information is securely stored on a secure cloud setup and all communication happens via bank-grade secure SSL communication channels. The Personal Information is stored on cloud storage provided by Amazon Web Service in India.

You are responsible for all actions that take place under your User Account. If you choose to share your User Account details and password or any Personal Information with third parties, you are solely responsible for the same. If you lose control of your User Account, you may lose substantial control over your Personal Information and may be subject to legally binding actions.

ACCESSING AND MODIFYING PERSONAL INFORMATION

In case you need to access, review, revoke and/or make changes to the Personal Information, you shall have to login to your User Account and may change the requisite details. You shall keep your Personal Information updated to help us serve you better.

ANCILLIARY SERVICES

We may provide you with certain ancillary services such as chat rooms, blogs and reviews for the Services. Subject to any Applicable Laws (as defined below), any communication shared by you via the Platform or through the blogs, reviews or otherwise to us (including without limitation contents, images, audio, financial information, feedback etc. (collectively **"Feedback"**)) is on a non-confidential basis, and we are under no obligation to refrain from reproducing, publishing or otherwise using it in any way or for any purpose. You shall be responsible for the content and information contained in any Feedback shared by you through the Platform or otherwise to us, including without limitation for its truthfulness and accuracy. Sharing your Feedback with us, constitutes an assignment to us of all worldwide rights, titles and interests in all copyrights and other intellectual property rights in the Feedback and you authorize us to use the Feedback for any purpose, which we may deem fit.

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COMMUNICATIONS FROM THE PLATFORM

- Special Offers and Updates: We may send you information on products, services, special deals, and a newsletter of the Company. Out of respect for your privacy, we present you with the option of not receiving these types of communications. You may unsubscribe via the unsubscribe mechanism provided in each such communication or by emailing us at Care@EarlySalary.com
- Service Announcements: On certain occasions or under law, we are required to send out Service or Platform related announcements. While we respect your privacy, you may not opt-out of these communications. These communications would not be promotional in nature and merely informational.
- Customer Service: We communicate with customer(s) on a regular basis to provide requested services and in regard to issues relating to their User Account, we reply via email or phone, based on customer(s) requirements and convenience

INDEMNIFICATION

You agree to indemnify us, our subsidiaries, affiliates, officers, agents, co-branders or other partners, and employees and hold us harmless from and against any claims and demand, including reasonable attorneys fees, made by any third party arising out of or relating to: (i) Personal Information and contents that you submit or share through the Platforms; (ii) your violation of this Privacy Policy, (iii) or your violation of rights of another customer(s).

LIMITATIONS OF LIABILITY

You expressly understand and agree that the Company shall not be liable for any direct, indirect, incidental, special, consequential or exemplary damages, including but not limited to, damages for loss of profits, goodwill, use, data, information, details or other intangible losses (even if the Company has been advised of the possibility of such damages), resulting from: (i) the use or the inability to use the Services; (ii) unauthorized access to or alteration of your Personal Information.

You expressly understand and agree that the Company, including its directors, officers, employees, representatives or the service provider, shall not be liable for any direct, indirect, incidental, special, consequential or exemplary damages, including but not limited to, damages for loss of profits, goodwill, use, data or other intangible losses (even if the Company has been advised of the possibility of such damages), resulting from; (a) use or the inability to avail the Services; (b) inability to use the Platform; (c) failure or delay in providing the Services or access to the

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Platforms; (d) any performance or non-performance by the Company; (e) any damages to or viruses that may infect your electronic devices or other property as the result of your access to the Platform or your downloading of any content from the Platform; and (f) server failure or otherwise or in any way relating to the Services.

GOVERNING LAWS

This Privacy Policy is governed by and is compliant with the applicable laws in India, including, but not limited to the Information Technology Act, 2000 and rules thereunder, specifically the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011, and any other laws which may amend, modify or replace such laws ("**Applicable Laws**") which is designed to protect Personal Information of the user(s) of the Services; and other applicable rules and regulations related to privacy. Further, this Privacy Policy and any understandings arrived at from therein shall be construed and governed by the laws of India and courts of law at Pune shall have exclusive jurisdiction over such disputes without regard to principles of conflict of laws.

CHANGES TO THIS POLICY

We may update this Privacy Policy without notice to you. You are encouraged to check this Privacy Policy on a regular basis to be aware of the changes made to it. Continued use of the Services and access to the Platforms shall be deemed to be your acceptance of the Privacy Policy as at the time.

CONTACT US

If you have any questions, concerns or grievances regarding this Privacy Policy, you can reach out to our Principal Officer **Mr. Vinay Dubey** at our grievance email-address: Care@EarlySalary.com.

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